

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE: Mental Health Counselor License of RHONDA LETTINGTON License No. 00951 Respondent	CASE NOS. 20-0282 & 21-0289 COMBINED STATEMENT OF CHARGES, SETTLEMENT AGREEMENT, AND FINAL ORDER
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COME NOW the Iowa Board of Behavioral Science (“Board”) and Rhonda Lettington (“Respondent”), 1340 250th St, Decorah IA 52101, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order (“Order”) pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 Iowa Administrative Code (IAC) 12.1. The Board has the authority to take disciplinary action pursuant to Iowa Code sections 147.55 and 272C.3, and 645 IAC chapter 33.

A. STATEMENT OF CHARGES

COUNTS I - III

1. Respondent is charged under 645 IAC 33.2(1)“b” with failure to comply with the Code of Ethics of the American Counseling Association (2014), specifically section A.6.b. regarding extending counseling boundaries; section B.1.c. regarding respect for confidentiality; and section B.3.f. regarding deceased clients.

COUNT IV

2. Respondent is charged under 645 IAC 33.2(13) with violating 645 IAC 31.12 regarding licensee record keeping.

COUNT V

3. Respondent is charged under 645 IAC 33.2(4) with knowingly engaging in unethical conduct or practice harmful or detrimental to the public.

B. FACTUAL CIRCUMSTANCES

4. Respondent holds mental health counselor license number 00951, which is currently active through September 30, 2022.

20-0282

5. Respondent provided therapy to a client for approximately six years.

6. Prior to becoming the client’s therapist, Respondent worked closely with the client for several years.

7. Respondent attended medical appointments with the client.

8. Upon the client's passing, Respondent notified personal contacts and had conversations with the client's family members, in which she revealed confidential information about the client, at the client's purported request. Respondent's records do not reflect a written consent for the release of confidential information.

9. Respondent billed for services on multiple occasions that could not be substantiated. Respondent's purported payment arrangement for services was not clearly reflected in the records.

21-0289

10. Respondent provided therapy to a client for approximately four years.

11. Respondent attended medical appointments with the client.

12. Respondent revealed confidential information without the written consent of the client.

13. Respondent initiated communication with the client in public places that revealed the therapeutic relationship.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

14. The Board has jurisdiction over Respondent and the subject matter of this proceeding.

15. Respondent acknowledges that the allegations in the Statement of Charges, though disputed by Respondent, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

16. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to a hearing before the Board on the charges, but Respondent waives the right to a hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing, but shall not be used for any other purpose.

17. Respondent acknowledges that they have the right to be represented by counsel on this matter.

18. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

19. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

20. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

21. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

22. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

23. Respondent agrees to **VOLUNTARILY SURRENDER** her mental health counselor license to resolve this matter. This voluntary surrender is considered discipline and, when accepted by the Board, has the same force and effect as an order of revocation under 645 IAC 12.1(5). This voluntary surrender shall be permanent; Respondent is not eligible to apply for reinstatement of her license in the future.

24. Respondent agrees not to use any words or titles which imply or represent that she is a licensed mental health counselor in the State of Iowa, or to otherwise hold herself out to the public as a licensed mental health counselor in the State of Iowa, or to engage in the practice of mental health counseling for which a license is required in the State of Iowa.

25. Respondent shall immediately return her mental health counselor license to the Board.

26. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

10-6-22
Date



RHONDA LETTINGTON
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on October 20, 2022.

/s/ Tony Alden

Tony Alden, Board Executive
Iowa Board of Behavioral Science